



File No.: EXP202203247

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on January 26, 2022. The complaint is directed against AYUNTAMIENTO DE PATERNA with NIF P4619200A (hereinafter, the respondent). The reasons for the complaint are as follows: The complainant states that on December 9, 2021, they submitted a request to the respondent, AYUNTAMIENTO DE PATERNA, asking for a copy of the register of processing activities (hereinafter RAT) in order to exercise the right of access to their data.

The complainant indicates that the RAT is not published, nor have they received a response to their request.

Along with the complaint, they provide the document submitted to the respondent.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on March 18, 2022, as evidenced by the acknowledgment of receipt in the file. However, no response has been received to this forwarding document.

THIRD: On April 26, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On September 25, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 31.2 of the LOPDGDD, classified under Article 83.4 of the GDPR.

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FIFTH: After notifying the aforementioned initiation agreement in accordance with the rules established in the LPACAP, the respondent submitted a written statement in which, in summary, they stated that: "The Ayuntamiento de Paterna acknowledges that at the time the complainant requested access to the Register of Activities of the Treatment of the Ayuntamiento, it was not available, which is why their request could not be forwarded.

In October 2022, being aware of this deficit regarding compliance with current regulations on data protection, REGULATION (EU) 2016/679 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) and Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights, it was decided to tender the services for the audit of review and compliance adjustment of the ENS and regulations on personal data protection and the provision of functions associated with the role of data protection officer.

As a result of the work carried out to comply with data protection regulations, the Ayuntamiento de Paterna makes available to any interested party the following procedure so that they can exercise any of the rights recognized in the current regulations on data protection."

Upon examining the allegations of the respondent, this Agency must emphasize that the European

General Data Protection Regulation came into force in May 2016; however, its application date is May 25, 2018.

Consequently, data controllers and processors have had ample time to adopt the necessary measures to comply with current data protection regulations.

Furthermore, as they allege in the submitted document, the respondent tendered the services for the audit of review and compliance adjustment of the ENS (National Security Scheme) applicable throughout the public sector in October 2022, when the respondent was obligated to have carried out the RAT from the beginning of the processing.

While the subsequent preparation of the RAT means that the respondent complies with the provisions of Articles 30 of the GDPR and 31.2 of the LOPDGDD respectively, it must be noted that at the time of the submission of the complaint that led to the initiation of the present sanctioning procedure, the respondent did not have the RAT; therefore, at that time, there was a breach of the current data protection regulations.

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consisting of the violation of the aforementioned articles, the closure of the procedure is not warranted. For all the above reasons, the allegations presented are DISMISSED.

SIXTH: On October 10, 2023, a resolution proposal was made, proposing to sanction the AYUNTAMIENTO DE PATERNA for the claim filed for an infringement of Article 31.2 d of the LOPDGDD and granting a period of ten days for the submission of allegations.

SEVENTH: This proposal was duly notified on October 11, 2023, without any allegations being received.

From the actions carried out in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: It is established in the file that the claimant has submitted to the AYUNTAMIENTO DE PATERNA a written request for a copy of the register of processing activities (hereinafter RAT) in order to exercise the right of access to their data.

SECOND: It is established in the file that the respondent did not have the RAT published, according to the verifications carried out by this Agency.

THIRD: It is established in the file that the respondent currently has the RAT published, according to the verifications carried out by this Agency.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the powers attributed to the Spanish Data Protection Agency by other laws" establishes that: "The provisions of Title VIII and its implementing rules shall apply to the procedures that the Spanish Data Protection Agency must process in the exercise of the powers attributed to it by other laws."

II

Obligation not fulfilled

Article 30 of the GDPR, Register of processing activities, establishes that:

“1. Each controller and, where applicable, its representative shall maintain a record of processing activities carried out under its responsibility. This record shall contain all the information indicated below:

- a) the name and contact details of the controller and, where applicable, the joint controller, the representative of the controller, and the data protection officer;
- b) the purposes of the processing;
- c) a description of the categories of data subjects and of the categories of personal data;
- d) the categories of recipients to whom the personal data have been or will be disclosed, including recipients in third countries or international organizations;
- e) where applicable, the transfers of personal data to a third country or an international organization, including the identification of that third country or international organization and, in the case of the transfers referred to in Article 49, paragraph 1, second sentence, the documentation of adequate safeguards;
- f) where possible, the envisaged time limits for erasure of the different categories of data;
- g) where possible, a general description of the technical and organizational security measures referred to in Article 32, paragraph 1.

2. Each processor and, where applicable, the representative of the processor shall maintain a record of all categories of processing activities carried out on behalf of a controller that contains:

- a) the name and contact details of the processor or processors and of each controller on behalf of which the processor is acting, and, where applicable, the representative of the controller or the processor, and the data protection officer;
- b) the categories of processing carried out on behalf of each controller;
- c) where applicable, the transfers of personal data to a third country or an international organization, including the identification of that third country or international organization and, in the case of the transfers referred to in Article 49, paragraph 1, second sentence, the documentation of adequate safeguards;

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- d) when possible, a general description of the technical and organizational security measures referred to in Article 30, paragraph 1.

3. The records referred to in paragraphs 1 and 2 shall be kept in writing, including in electronic format.

4. The data controller or the processor, and, where applicable, the representative of the controller or the processor shall make the record available to the supervisory authority that requests it.

5. The obligations indicated in paragraphs 1 and 2 shall not apply to any company or organization employing fewer than 250 persons, unless the processing carried out may pose a risk to the rights and freedoms of the data subjects, is not occasional, or includes special categories of personal data referred to in Article 9, paragraph 1, or personal data relating to criminal convictions and offenses referred to in Article 10.”

Also, Article 31 of the LOPDGDD, Record of processing activities, states that:

“1. The controllers and processors or, where applicable, their representatives shall maintain the record of processing activities referred to in Article 30 of Regulation (EU) 2016/679, unless the exception provided for in paragraph 5 applies.

The record, which may be organized around structured sets of data, shall specify, according to its purposes, the processing activities carried out and the other circumstances established in the aforementioned regulation.

When the controller or processor has appointed a data protection officer, they must communicate any addition, modification, or exclusion in the content of the record.

2. The subjects listed in Article 77.1 of this organic law shall make publicly available an inventory of their processing activities accessible by electronic means, which shall include the information established in Article 30 of Regulation (EU) 2016/679 and its legal basis.”

In this regard, it is clarified the material error recorded in the resolution proposal, in which, despite being clearly specified in the body of the same, it ultimately refers exclusively to Article 31 of the LOPDGDD, while the attribution of the non-compliance is that of Article 30 of the GDPR.

III

Classification and qualification of the infringement

In light of the facts presented, it is considered appropriate to impose a sanction on the party claimed for the violation of Article 31.2 of the LOPDGDD classified in Article 83.4 of the GDPR. The sanction to be imposed is the declaration of infringement.

Article 83 “General conditions for the imposition of administrative fines” of the GDPR paragraph 7 states:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Likewise, Article 77 “Regime applicable to certain categories of controllers or processors” of the LOPDGDD provides as follows:

“1- The regime established in this article shall apply to the processing for which they are responsible or processors: ...

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration...

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the data protection authority that is competent shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be taken to cease the conduct or correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it is hierarchically subordinate, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to the provisions of the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regime that is applicable.

Likewise, when the infringements are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for processing that have not been duly addressed, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order publication in the Official State or regional Gazette that corresponds.

4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

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5. The actions taken and the resolutions issued under this article will be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities. (...)”
Consequently, it is appropriate to issue a resolution declaring the infringement committed by the AYUNTAMIENTO DE PATERNA.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that AYUNTAMIENTO DE PATERNA, with NIF P4619200A, has infringed the provisions of Article 30 of the GDPR, an infringement classified under Article 83.4 of the GDPR.

SECOND: TO NOTIFY this resolution to AYUNTAMIENTO DE PATERNA.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, presenting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that certifies the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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